

For educational use only

*554 Yorkshire Copper Works Ltd. v Registrar of Trade Marks



Positive/Neutral Judicial Consideration

Court

House of Lords

Judgment Date

25 February 1954

Report Citation

[1954] 1 W.L.R. 554



House of Lords

Lord Simonds L.C. , Lord Oaksey , Lord Morton of
Henryton , Lord Asquith of Bishopstone and Lord Cohen .

1954 Feb. 25

Trade Mark—Registration—Distinctiveness—Geographical name—Whether inherently adapted to distinguish—“Yorkshire” copper tubes—[Trade Marks Act, 1938 \(1 & 2 Geo. 6, c. 22\), s. 9](#) .

A company which manufactured most of its products in Yorkshire applied for registration of the word “Yorkshire” as a trade mark for goods specified as “solid drawn tubes and capillary fittings, all being made of copper or non-ferrous copper alloys.” There was no other manufacturer of such goods in Yorkshire. Evidence was filed that the mark had acquired “100 per cent. distinctiveness”:—

Held that, even though the mark might have acquired “100 per cent. distinctiveness,” the Registrar of Trade Marks, in considering whether it fell within [section 9 \(1\) \(e\) of the Trade Marks Act, 1938](#) , was still bound under [subsection \(3\)](#) to have regard to the extent to which it was “inherently adapted to distinguish” the goods in question, and, inasmuch as it was not so adapted and, further, did not fall within [section 9 \(1\) \(a\), \(b\), \(c\), \(d\)](#) , it should not be registered.

A. Baily & Co. Ltd. v. Clark, Son & Morland [1938] A.C. 557; 54 T.L.R. 688 ; [1938] 2 All E.R. 377 applied .

***555**

Per Lord Simonds L.C.: A geographical name can only be inherently adapted to distinguish the goods of A when it is such a name as would never occur to B to use in respect of his similar goods.

Decision of the *Court of Appeal (sub nom. Yorkshire Copper Works Ltd.'s Application)* (1952) 70 R.P.C. 1 affirmed .

APPEAL from the Court of Appeal (Evershed M.R., Denning and Romer L.JJ.).

This was an appeal from a judgment and order of the Court of Appeal, affirming the judgment and order of Lloyd-Jacob J. which affirmed the decision of the Assistant Comptroller, acting for the respondent, the Registrar of Trade Marks, who refused an application by the appellants, Yorkshire Copper Works Ltd., to register the mark “Yorkshire” in respect of “solid drawn tubes and capillary fittings, all being made of copper or non-ferrous copper alloys.” The appellant company submitted that the registrar should be directed to proceed with the application.

The facts are stated by Lord Simonds L.C.

Representation

K. E. Shelley Q.C. and J. B. Shelley for the appellant company.

Sir Lionel Heald A.-G. and P. Stuart Bevan for the respondent.

The following cases, besides those referred to in their Lordships' opinions, were cited in argument:

In re R. J. Lea Ltd.'s Application ¹ ; *In re J. & P. Coats Ltd.'s Application* ² ; *In re Boots Pure Drug Co. Ltd.'s Trade Mark* , ³ and *In re Alexander Pirie & Sons Ltd.'s Application* . ⁴

LORD SIMONDS L.C.

Their Lordships took time for consideration.

Feb. 25. My Lords, in my opinion this appeal should be dismissed, and as the facts are not in dispute and the law applicable to those facts appears to me to be clearly settled by the authority of this House, I shall not detain your Lordships for long.

In March, 1950, the appellants applied for registration of a trade mark consisting of “Yorkshire,” represented in special type and between inverted commas, for goods which were eventually specified as “Solid drawn tubes and capillary fittings, all being made of copper or non-ferrous copper alloys.” Nothing turns on the special type or the inverted commas.

The appellants supported their application by cogent evidence that in fact the mark “Yorkshire” was distinctive of their goods. I am content to accept the statement reiterated by their counsel that the mark had acquired 100 per cent. distinctiveness. In *556 spite of this fact the registrar refused registration and has been upheld in his refusal by Lloyd-Jacob J. and the unanimous opinion of the Court of Appeal. It becomes necessary, then, to examine the grounds of this decision, and I will at once refer to the relevant provisions of the [Trade Marks Act, 1938](#) .

It is convenient to set out verbatim the terms of [section 9](#) of the Act, which provides as follows:—

“(1) In order for a trade mark (other than a certification trade mark) to be registrable in Part A of the register, it must contain or consist of at least one of the following essential particulars:—

- (a) the name of a company, individual, or firm, represented in a special or particular manner;
- (b) the signature of the applicant for registration or some predecessor in his business;
- (c) an invented word or invented words;
- (d) a word or words having no direct reference to the character or quality of the goods, and not being according to its ordinary signification a geographical name or a surname;

(e) any other distinctive mark, but a name, signature, or word or words, other than such as fall within the descriptions in the foregoing paragraphs (*a*), (*b*), (*c*) and (*d*), shall not be registrable under the provisions of this paragraph except upon evidence of its distinctiveness.

(2) For the purposes of this section ‘distinctive’ means adapted, in relation to the goods in respect of which a trade mark is registered or proposed to be registered, to distinguish goods with which the proprietor of the trade mark is or may be connected in the course of trade from goods in the case of which no such connection subsists, either generally or, where the trade mark is registered or proposed to be registered subject to limitations, in relation to use within the extent of the registration.

(3) In determining whether a trade mark is adapted to distinguish as aforesaid the tribunal may have regard to the extent to which —

(a) the trade mark is inherently adapted to distinguish as aforesaid; and

(b) by reason of the use of the trade mark or of any other circumstances, the trade mark is in fact adapted to distinguish as aforesaid.”

As we are dealing with a mark, which is beyond question a geographical name, I point out that under [section 9 \(1\) \(d\)](#) a word, even though it has no direct reference to the character or quality of the goods, cannot be registered if it is according to its ordinary signification a geographical name. A special warning appears to be given against such a name. But under [section 9 \(1\) \(e\)](#) it may yet qualify for registration if it satisfies certain conditions, i.e., if there is such evidence of its distinctiveness as the section by the later subsections postulates. These I have set out and I only make this comment that, though I can think of no other factor relevant to distinctiveness than those set out in [subsection \(3\)](#), yet if there is such a factor it would be the right and duty of the registrar to take it into consideration. I do not think it necessary to discuss whether the word “may” means “must,” for I cannot conceive [*557](#) that as a practical matter the registrar could ignore either of the factors (*a*) or (*b*).

The position, then, is this, that the registrar will have to consider both the inherent adaptability and the distinctiveness in fact of a geographical name before he makes his decision. Here I must express my emphatic dissent from the proposition which was strenuously urged by counsel for the appellants that distinctiveness in fact is conclusive — at any rate, if there is what he

called 100 per cent. distinctiveness. In my opinion the decisions of this House in *Trade Marks Registrar v. W. & G. du Cros. Ltd.*⁵ and *A. Baily & Co. Ltd. v. Clark, Son & Morland*⁶ (the Glastonbury case) are fatal to this proposition and I am content to accept as accurate the clear exposition of those cases given by the learned Master of the Rolls in the present case. He took the view which I share that the *Court of Appeal had in In re Liverpool Electric Cable Co. Ltd.'s Applications*⁷ rightly interpreted the opinion of Lord Parker in the *W. & G.* case⁸ and that this House, in its turn, in the *Glastonbury* case⁹ endorsed that interpretation. Accepting that view of the law, which indeed, if the matter were *res integra*, I should not hesitate to commend to your Lordships, I do not see how the registrar could have come to any other conclusion. Unless, having found distinctiveness in fact, he needed to pay no regard to the other factor of inherent adaptability, he was faced by the fact that there could not well be a geographical name less “inherently adapted” than Yorkshire to distinguish the goods of the appellants. I do not propose to try to define this expression. But I would say that, paradoxically perhaps, the more apt a word is to describe the goods of a manufacturer, the less apt it is to distinguish them: for a word that is apt to describe the goods of A, is likely to be apt to describe the similar goods of B. It is, I think, for this very reason that a geographical name is *prima facie* denied registrability. For, just as a manufacturer is not entitled to a monopoly of a laudatory or descriptive epithet, so he is not to claim for his own a territory, whether country, county or town, which may be in the future, if it is not now, the seat of manufacture of goods similar to his own. I do not ignore that some protection is given by [section 8](#) of the Act, but I accept the view frequently expressed in regard to this section and to [section 44](#) of the earlier Act which it replaced and in particular by Lord Maugham, Lord Atkin and Lord Russell of Killowen in the *Glastonbury* case,¹⁰ that it should not afford a guide as to whether a name should be registered or not.

I am led to suggest that it is perhaps easier to define “inherent adaptability” in negative than in positive terms: in other words, I would say that a geographical name can only be ***558** inherently adapted to distinguish the goods of A when you can predicate of it that it is such a name as it would never occur to B to use in respect of his similar goods. Of such names the classic examples are “Monte Rosa” for cigarettes or “Teneriffe” for boiler plates. There will probably be border-line cases, but there is, in my opinion, no doubt on which side of the border lies Yorkshire, a county not only of broad acres but of great manufacturing cities. If the *Liverpool Cable* case¹¹ was rightly decided, as I think it clearly was, a fortiori the registrar was right in refusing registration to “Yorkshire.” And if it were a border-line case, which it is not, I think that a court, to which an appeal is brought from the registrar, though, no doubt, it must exercise its own discretion in the matter, should be slow to differ from the experienced official whose constant duty it is to protect the interests of the public not only of today but of tomorrow and the day after. In uttering that warning I only repeat what has been said more than once in this House. But, as I have already said, the present case is one in which there can be no doubt that the registrar came to a proper conclusion, and I move that the appeal be dismissed with costs.

LORD OAKSEY.

My Lords, I had prepared an opinion in this case, but, as I entirely agree with the opinion which has just been delivered by the Lord Chancellor, I withdraw it.

LORD MORTON OF HENRYTON.

My Lords, I have had the advantage of reading the opinion which is about to be delivered by my noble and learned friend Lord Asquith of Bishopstone. I agree with his views as to the construction and effect of [section 9 of the Trade Marks Act, 1938](#) , and the principles which should be followed in applying that section to any trade mark whereof registration is sought.

If there had been no authority to guide me, I should have found it a difficult task to arrive at a decision by applying these principles to the facts of the present case, but in my view the present case cannot be distinguished on its facts or on any other ground from the decision of the *Court of Appeal in In re Liverpool Electric Cable Co. Ltd.'s Applications* .¹² The decision in that case, and the reasoning upon which it was founded, were clearly approved by this House in *A. Baily & Co. Ltd. v. Clark, Son & Morland* ¹³ (the *Glastonbury* case), and I entirely agree with the following passages from the judgment of the Master of the Rolls in the present case. Dealing with the *Liverpool* case ¹⁴ he said ¹⁵ :

“As in the present case, the name of the applicant company had as its first word the very geographical name which they sought to register. The name was the Liverpool Electric Cable Co. Ltd. *559 In that case, as in the present, the applicant company appeared to be the only company making articles of the kind in question within the ambit of the place, the geographical name of which was sought to be registered. There was in the *Liverpool* case ¹⁶ no evidence of any other company making electric cables in or around Liverpool, just as here (though there appeared to be other persons making copper tubes) there are no other manufacturers of goods of the somewhat specialized character with which we are concerned. In the *Liverpool* case, ¹⁷ as in the present, a body of evidence had been submitted so that the learned judge, Romer J., could say of it ¹⁸ : ‘I arrive ... at this conclusion that the words “Liverpool cables” do in fact now serve, and have for some time past in fact served, to distinguish the applicants’ goods from

those of the rest of the world.’ So in this case I assume (and I am not hinting in any way to the contrary) that the evidence filed in this case established that the word ‘Yorkshire’ as applied to these drawn copper tubes, etc., does in fact now serve, and has for some time in fact served, to distinguish the applicants' goods from those of the rest of the world.”

Later, the Master of the Rolls observed ¹⁹

“Without attempting any exhaustive exposition, it seems to me that no valid distinction in this case can be drawn between the application of Liverpool to a particular industrial product and the application of Yorkshire to a particular industrial product. If a point of difference could be found, I think the result would be only to introduce into the law refinements which could not advantage either the law or those whom the law serves. Although some reference was naturally made in the *Liverpool* case ²⁰ to the fact that Liverpool is a very large city, the emphasis was upon the circumstance that it is a centre of industry. As I have already indicated, as regards a substantial part of it, so is Yorkshire — certainly the part of Yorkshire which includes Leeds where this company has its main place of business. I therefore think we should not be justified upon principle or otherwise in drawing a distinction between the use of this county name in the present case and the use of the name of the city of Liverpool in the earlier case.”

These passages exactly express my own view, and I would dismiss this appeal.

LORD ASQUITH OF BISHOPSTONE.

My Lords, the decision in the present case turns primarily on [section 9 of the Trade Marks Act, 1938](#) . The mark proposed for the goods in question — in substance solid drawn copper and

copper alloy tubes — is simply the word “Yorkshire” in inverted commas, the presence of which last is admitted to be immaterial for purposes of a decision.

It is plain that the mark “Yorkshire” does not fall within [section 9 \(1\) \(a\), \(b\), \(c\), \(d\)](#) of the Act of 1938. Therefore, *560 unless it falls within [section 9 \(1\) \(e\)](#), it does not qualify for registration. It only falls within [section 9 \(1\) \(e\)](#) if there is what that sub-paragraph calls “evidence of distinctiveness.” “Distinctiveness” is defined in [subsection \(2\)](#) as meaning some quality in the trade mark (if I may paraphrase) which earmarks the goods so marked as distinct from those of other producers of such goods. It is not enough that it should earmark the goods as complying with a particular description, or as originating from a particular geographical area, or having claims to a peculiar excellence.

[Subsection \(3\)](#) is designed to help the registrar to determine when the requirements of [subsection \(2\)](#) are satisfied. It provides that in so determining the registrar “may” — and I think “may” here means “must” or the subsection is nugatory — must have regard to two factors and to their “extent”: the extent, namely, to which

“(a) the trade mark is inherently adapted to distinguish as aforesaid; and
(b) by reason of the use of the trade mark or of any other circumstances,
the trade mark is in fact adapted to distinguish as aforesaid.”

I think “have regard to” and “extent” are important words. They indicate that (a) and (b) are not cast iron “requirements” each of which must be satisfied to the extent of 100 per cent. Touching these two factors (a) “inherent” distinctiveness; (b) distinctiveness “in fact,” there is no doubt that the registrar “had regard to” (b) and has held, rightly or admittedly, that the factor is present “to the extent” — I am using the words of the subsection — of 100 per cent. There is equally little doubt, on the authorities, that this does not dispose of the matter: viz., it does not dispense the registrar from considering to what extent factor (a) is present. On the decisions, which I do not need to cite, the contrary is unarguable.

As to factor (a), your Lordships have to consider to what extent this factor is present in the particular case in which the mark proposed for registration is a geographical term, e.g., “Yorkshire.” I prefer to envisage this problem in the first instance in abstraction from authority.

So considered, a geographical area, unless extremely small, seems to me inherently unadapted to distinguish the products of one producer in that area from those of another in the same area. When the area is as large as Yorkshire, it seems to me fanciful to dispute this proposition. Indeed, when the trade mark is geographical, it follows, paradoxical as it may sound, that it can only satisfy factor (*a*) where its significance, in the particular context, is non-geographical. For only so can it serve to distinguish the goods of one producer from the goods of others. Good imaginary instances of this paradox are “North Pole Bananas,” “Monte Rosa Cigarettes,” and so on. In these instances the geographical term is clearly not applied in any geographical sense, and pro tanto may — I will not say must — be a sufficient compliance with [section 9 \(3\) \(d\)](#) . If it were applied in a purely geographical sense, it could not so comply, because it would simply indicate that the goods in question were **561* supplied within a particular locality, not that they were supplied only by a specific supplier, and the last consideration is the only one which, for this purpose, counts.

I would only add that the primary question posed by [section 9 \(1\) and \(2\)](#) is whether there is evidence of “distinctiveness”: and that [subsection \(3\)](#) , in supplying pointers to the solution of this question, itself raises questions of degree under both limb (a) and limb (b). This question of degree as applied to (b) of [subsection \(3\)](#) is assumed to be answered in the sense that that factor is fully present. As regards [subsection \(3\) \(a\)](#) , the factor involved, viz., “inherent” adaptedness, may be present or satisfied to the extent of 1 per cent. or 100 per cent.: and the question posed by [subsection \(2\)](#) — distinctiveness as a whole vel non — depends on the combined answers to [subsection \(3\) \(a\) and \(b\)](#) . In the present case the answer to [subsection \(3\) \(a\)](#) seems to me almost wholly negative and the addition of (*a*) to (*b*) inadequate to justify registration. If, as so many of the cases state or imply, the registrar has a discretion in regard to the summation of these factors, I think he has on these materials either exercised it rightly, or has exercised it in a sense which appellate courts cannot properly dispute.

But apart from these general considerations of principle, the immediately relevant question in the present case seems to me to be concluded in a manner binding on this House by its own decision in the *Glastonbury* case ²¹ affirming that of the *Court of Appeal in the Liverpool* case.
22

I would accordingly dismiss the appeal.

LORD COHEN.

My Lords, I am of the same opinion. I need not re-read the provisions of the Act or repeat the statement of facts. It is sufficient for my purpose to say that I am prepared to accept that the evidence in this case establishes what Mr. Shelley called 100 per cent., or universal distinctiveness in fact of the appellants' mark. On this basis Mr. Shelley contended that it was unnecessary to consider whether the trade mark "Yorkshire" was inherently adapted to distinguish the appellants' goods and that the respondent was bound to proceed with their application for registration.

This argument is not supported by authority. Indeed, as Mr. Shelley admitted, it is in conflict with the decision of the *Court of Appeal in the Liverpool* case.²³ Mr. Shelley submitted that that case was wrongly decided and that it was open to your Lordships to overrule it. I am unable to agree. As I read the judgment of Lord Russell of Killowen in the *Glastonbury* case²⁴ (a judgment with which all their Lordships expressed their agreement) this House expressly approved the ratio decidendi of and the decision ***562** in the *Liverpool* case.²⁵ But even if the matter were open, I should reach the same conclusion. I agree with Lord Russell of Killowen that the *Liverpool* case²⁶ laid down no new law but was correctly applying the observations of Lord Parker in the *W. & G.* case²⁷ :

“But the tribunal is not bound to allow registration even if the mark be in fact distinctive. A common law mark is still not necessarily registrable. If the tribunal finds that a mark is anywhere, or among any class of people, in fact, distinctive of the goods of the applicant, it may be influenced by this fact in determining whether it is adapted to distinguish these goods from those of other persons, but distinctiveness in fact is not conclusive.”

In my opinion, on the true construction of [section 9 of the Trade Marks Act, 1938](#) which for present purposes may be regarded as indistinguishable from [section 9 of the Trade Marks Act, 1905](#) , as amended by the Trade Marks Act, 1919 , the tribunal, in considering whether a trade mark is adapted to distinguish goods with which the proprietor of the mark is or might be connected in the course of trade from goods in the case of which no such connexion exists, should take into account both the factors referred to in section 9 (3) . It is the duty of the tribunal to weigh all relevant factors in reaching its conclusion. A geographical word may be inherently “adapted to distinguish as aforesaid,” as in the instances given by Fletcher Moulton L.J. in *In re Joseph Crosfield & Sons Ltd* .²⁸ (the *Perfection Soap* case) of “Monte Rosa” cigarettes or

“Teneriffe” boiler plates. At the other end of the scale would be such a word as “British.” Words such as “Yorkshire” and “Liverpool,” associated as they are with large manufacturing centres, are, in my opinion, much nearer the “British” end of the scale than the opposite end. I agree with the Master of the Rolls in the present case where, after saying that geographical names might in some cases be allowed, he continued ²⁹ :

“... there seems to me to be one principle applicable to them all, a principle which is stated in the *Perfection Soap* case ³⁰ by Sir Herbert Cozens-Hardy, then the Master of the Rolls, and by Farwell L.J. The principle is thus put by Sir Herbert Cozens-Hardy ³¹ : ‘Wealthy traders are habitually eager to enclose part of the great common of the English language and to exclude the general public of the present day and of the future from access to the inclosure.’ Farwell L.J. observes ³² ‘The court is careful not to interfere with other persons' rights further than is necessary for the protection of the claimant, and not to allow any claimant to obtain a monopoly further than is consistent with reason and fair dealing.’”

***563**

Applying this principle to the present case, I think the Assistant Comptroller came to the right conclusion, and I agree that the appeal should be dismissed.

Representation

Solicitors: Woodham Smith, Borradaile & Martin; Solicitor to the Board of Trade .

Appeal dismissed.

Footnotes

- 1 [\[1913\] 1 Ch. 446 .](#)
- 2 [\(1936\) 155 L.T. 127 ; 53 R.P.C. 355 .](#)
- 3 [\[1938\] Ch. 54 ; 53 T.L.R. 1005 ; \[1937\] 4 All E.R. 23 .](#)

- 4 (1933) 149 L.T. 199 ; 50 R.P.C. 147 .
- 5 [1913] A.C. 624 ; 29 T.L.R. 772 ; sub nom. *Re Du Cros' Application*, 30 R.P.C. 660;
57 S.J. 728 .
- 6 [1938] A.C. 557 ; 54 T.L.R. 688 ; [1938] 2 All E.R. 377 .
- 7 (1928) 46 R.P.C. 99 .
- 8 [1913] A.C. 624 .
- 9 [1938] A.C. 557 .
- 10 [1938] A.C. 557 .
- 11 46 R.P.C. 99 .
- 12 Ibid.
- 13 [1938] A.C. 557 .
- 14 46 R.P.C. 99 .
- 15 (1952) 70 R.P.C. 1 , 6.
- 16 46 R.P.C. 99 .
- 17 46 R.P.C. 99 .
- 18 Ibid. 104.
- 19 70 R.P.C. 1 , 8.
- 20 46 R.P.C. 99 .
- 21 [1938] A.C. 557 .
- 22 46 R.P.C. 99 .
- 23 Ibid.
- 24 [1938] A.C. 557 .
- 25 46 R.P.C. 99 .
- 26 46 R.P.C. 99 .
- 27 [1913] A.C. 624 , 637.
- 28 [1910] 1 Ch. 130 , 144; 26 T.L.R. 100 .
- 29 70 R.P.C. 1 , 4–5.
- 30 [1910] 1 Ch. 130 .
- 31 Ibid. 141.
- 32 Ibid. 150–1.

(c) Incorporated Council of Law Reporting for England & Wales